

--SUMMARY--

Decision No. 1914/18

10-Oct-2018

J. Josefo

- In the course of employment (reasonably incidental activity test)
- Right to sue
- Transportation industry (truck driver)

The plaintiff in a civil case was a truck driver. He was injured in January 2012, when he slipped and fell as he was leaving the convenience store at a truck stop. The defendants applied to determine whether the plaintiff's right of action was taken away. The issue was whether the plaintiff was in the course of employment at the time of the accident.

The plaintiff dropped off a load, then went to the truck stop to re-fuel. He updated his log books, then went to the convenience store to buy some snacks. The weather was poor that day. The plaintiff was not planning to go anywhere. He was planning to relax in the cab.

The Vice-Chair noted Decision No. 1765/08, which stated that, in the case of a long-distance truck driver, the personal and the employment are particularly difficult to separate, and that the truck and the journey are the driver's work.

The Vice-Chair found that the plaintiff was engaged in activity reasonably incidental to his employment. The plaintiff was in the course of employment at the time of the accident. His right of action was taken away.

13 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w5018s]
- BOARD DIRECTIVES AND GUIDELINES: Operational Policy Manual, Documents No. 15-02-02, 15-03-05
- TRIBUNAL DECISIONS CONSIDERED: 1765/08 consd

Style of Cause: Perrin v. Flying J Canada Inc.
Neutral Citation: 2018 ONWSIAT 3186



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 1914/18

BEFORE: J. Josefo: Vice-Chair

HEARING: June 26, 2018, at Toronto
Oral

DATE OF DECISION: October 10, 2018

NEUTRAL CITATION: 2018 ONWSIAT 3186

APPLICATION FOR ORDER UNDER SECTION 31 OF THE *WORKPLACE SAFETY AND INSURANCE ACT, 1997*

APPEARANCES:

For the applicant(s) Flying J Canada Inc., Flying J Inc., 1059425 Ontario Ltd., and

Rathcliffe Holdings Ltd., c.o.b. as Rathcliffe Properties: P. Hancock, Barrister & Solicitor

For the respondents Mr. Perrin and Ms. Yerxa: K. MacDonell, Barrister & Solicitor

Interpreter: Not Applicable

**Workplace Safety and Insurance
Appeals Tribunal**

505 University Avenue 7th Floor
Toronto ON M5G 2P2

**Tribunal d'appel de la sécurité professionnelle
et de l'assurance contre les accidents du travail**

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REASONS

(i) The right to sue application – how it arises, and the parties to it

[1] This application arises out of a January 19, 2012 “slip and fall” accident. It occurred at a convenience store located at a truck stop, in Mississauga, Ontario. Mr. Perrin, a long-haul truck driver, on January 19, 2012 stopped at a truck stop known as the “Flying J” in Mississauga, Ontario. After parking his truck, he entered the convenience store to buy personal items. When leaving the store, Mr. Perrin slipped and fell. He suffered injuries as a result.

[2] Mr. Perrin was and still is a resident of the Province of New Brunswick. After returning home, he made a claim under the *Worker’s Compensation Act* of New Brunswick. Mr. Perrin received benefits from “WorkSafe NB” as a result of this Ontario slip and fall accident. On December 23, 2013 Mr. Perrin, and his spouse Ms. Yerxa, also commenced a civil action in Toronto, Ontario under Court File No. CV-13-495449 for damages he allegedly suffered in the slip and fall accident.

[3] The defendants to the civil action, Flying J Canada Inc., Flying J Inc., 1059425 Ontario Limited, and Rathcliffe Holdings Limited, cob as Rathcliffe Properties, are the applicants in this within proceeding. They are represented by Mr. Hancock. Mr. Perrin and Ms. Yerxa, the plaintiffs in the civil action, are the respondents herein. They are represented by Ms. MacDonell.

(ii) Procedural matters leading up to this within hearing

[4] The hearing in this matter was originally scheduled for March 1, 2018. The respondent Mr. Perrin (“respondent” or “Mr. Perrin”) sought leave to appear by tele-conference, rather than in person. The applicants rejected the request. I ultimately issued a pre-hearing ruling on February 25, 2018 directing that the respondent attend in person.

[5] The respondent then requested an adjournment in order to book a more advantageous air fare for the travel from New Brunswick to Ontario. While the applicant objected to that request, pursuant to a ruling dated February 27, 2018, I granted the adjournment. A new hearing date of June 26, 2018 was then set. The hearing proceeded on that day.

[6] Mr. Perrin testified in response to questions, cross-questions, as well as questions of clarification posed by me. I also had access to Mr. Perrin’s Examination for Discovery transcripts, including his Examination of June 19, 2015, all of which were part of the rather voluminous record in this matter.

[7] Following testimony, both counsel provided oral submissions which augmented their previously tendered briefs. I appreciate very much the quality of the oral and written submissions made in this case.

[8] The Tribunal only uses the last names of individual parties when a civil action has been commenced, as it was in this case. As demonstrated on the cover page and herein, I follow that standard practice in these reasons.

[9] One other point on language used in these reasons: I use “truck” and “cab” interchangeably, given the common vernacular is “truck”. Yet by that I mean the cab without the trailer, as the evidence is that Mr. Perrin had earlier on the day in question dropped off his load.

(iii) Issues – the one outstanding to be determined, and the other withdrawn

[10] At the outset of the hearing, one issue for my determination was whether Mr. Perrin had the requisite “substantial connection to Ontario” (so the Ontario WSIA applied) , considering that he was at the relevant time a long-haul trucker, resident of New Brunswick. At the conclusion of the evidence, Ms. MacDonell withdrew from dispute the issue of Mr. Perrin’s substantial connection. Counsel for the respondent conceded that Mr. Perrin did have a substantial connection to Ontario.

[11] In my view, considering all the evidence, that concession was most appropriate in the circumstances.

[12] The sole remaining issue for my determination is whether Mr. Perrin was in the course of his employment when the slip and fall accident occurred, or if he was engaged “in an activity reasonably incidental to (related to) the employment” or, if at the time of the accident, Mr. Perrin was no longer in the course of his employment.

(iv) Overview of the relevant facts

[13] Once this matter is boiled down to its essence, there is really no dispute about the key facts, including those occurring at about the time of the slip and fall accident. Again, Mr. Perrin was a long haul trucker. He was typically away from home and driving various routes five to six days at a time. He signed his contract of employment in New Brunswick, working for a company based in Nova Scotia. The employer paid for Mr. Perrin’s fuel, tolls, truck repairs, and insurance, while he paid for his own food consumed on the road. He was indisputably an employee.

[14] Mr. Perrin described that he could use the truck, after making deliveries for the day or reaching his maximum driving hours, for some limited personal driving. For example, he could drive to a movie, or to get dinner locally. He also testified that his brother, who lived in Ontario, could pick him up for a visit when Mr. Perrin was in the area. In that case, Mr. Perrin would leave his truck in a secure facility.

[15] On January 18, 2012, the day prior to the accident, Mr. Perrin was in the state of Illinois awaiting a load. Once his truck was loaded, he commenced what he estimated was a nine hour drive to Ontario. On January 19, 2012, Mr. Perrin headed to a particular yard to drop off his load. He then headed toward the Flying J to re-fuel, using the company fuel card. He parked his truck, spent another 15 or so minutes updating his log books, and then decided to purchase some snacks in the convenience store. Mr. Perrin testified that he picked the Flying J because he preferred its clean facilities, including its showers.

[16] After getting his snacks in the mid-afternoon, when leaving the convenience store Mr. Perrin suffered his slip and fall accident. Eventually, he obtained medical attention in Ontario, and he also sought further medical attention upon his return to New Brunswick.

[17] There is no doubt that Mr. Perrin:

- made a claim for Worker’s Compensation benefits in New Brunswick,
- appealed a decision denying him ongoing entitlement, which the New Brunswick Worker’s Compensation Appeals Tribunal granted in a decision dated March 18, 2014,

- continues presently to receive Worker's Compensation benefits from WorkSafe NB.

In correspondence dated June 16, 2016, the Ontario WSIB confirmed that WorkSafe NB referred the question of whether Mr. Perrin's claim was statute-barred to the Ontario WSIB. In that June 16, 2016 correspondence, the Ontario WSIB confirmed that the WSIAT is the body to determine whether Mr. Perrin's claim is statute-barred.

[18] None of that is in any dispute. Nor is it in dispute that Mr. Perrin claimed WSIB benefits, which claim the applicant argues was on the basis that he obviously believed he was a worker in the course of his employment when the accident occurred. Yet Mr. Perrin stated that he simply needed an income, so he pursued Worker's Compensation benefits on that basis.

[19] As I consider the matter, all of these procedural goings-on I find can be stripped away. In my view, again, when approaching the case on its essence, the question is whether Mr. Perrin, whom the respondent again conceded has a substantial connection to Ontario, was at the time of his accident in the course of his employment or engaged in an activity reasonably incidental thereto. To address that question, in addition to the evidence, I consider the applicable law and policy, an overview of which next follows in these reasons.

(v) Law and policy

[20] Section 31 of the WSIA provides that a party to an action or an insurer from whom statutory accident benefits (SABs) are claimed under section 268 of the *Insurance Act* may apply to the Tribunal to determine whether: a right of action is taken away by the Act; whether a plaintiff is entitled to claim benefits under the insurance plan; or whether the amount a party to an action is liable to pay is limited by the Act.

[21] Sections 26 through 29 of the WSIA provide the following:

26(1) No action lies to obtain benefits under the insurance plan, but all claims for benefits shall be heard and determined by the Board.

(2) Entitlement to benefits under the insurance plan is in lieu of all rights of action (statutory or otherwise) that a worker, a worker's survivor or a worker's spouse, child or dependant has or may have against the worker's employer or an executive officer of the employer for or by reason of an accident happening to the worker or an occupational disease contracted by the worker while in the employment of the employer.

27(1) Sections 28 to 31 apply with respect to a worker who sustains an injury or a disease that entitles him or her to benefits under the insurance plan and to the survivors of a deceased worker who are entitled to benefits under the plan.

(2) If a worker's right of action is taken away under section 28 or 29, the worker's spouse, child, dependant or survivors are, also, not entitled to commence an action under section 61 of the Family Law Act.

28(1) A worker employed by a Schedule 1 employer, the worker's survivors and a Schedule 1 employer are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. Any Schedule 1 employer.
2. A director, executive officer or worker employed by any Schedule 1 employer.

(2) A worker employed by a Schedule 2 employer and the worker's survivors are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. The worker's Schedule 2 employer.
2. A director, executive officer or worker employed by the worker's Schedule 2 employer.

(3) If the workers of one or more employers were involved in the circumstances in which the worker sustained the injury, subsection (1) applies only if the workers were acting in the course of their employment.

(4) Subsections (1) and (2) do not apply if any employer other than the worker's employer supplied a motor vehicle, machinery or equipment on a purchase or rental basis without also supplying workers to operate the motor vehicle, machinery or equipment.

29(1) This section applies in the following circumstances:

1. In an action by or on behalf of a worker employed by a Schedule 1 employer or a survivor of such a worker, any Schedule 1 employer or a director, executive officer or another worker employed by a Schedule 1 employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.
2. In an action by or on behalf of a worker employed by a Schedule 2 employer or a survivor of such a worker, the worker's Schedule 2 employer or a director, executive officer or another worker employed by the employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.

(2) The employer, director, executive officer or other worker is not liable to pay damages to the worker or his or her survivors or to contribute to or indemnify another person who is liable to pay such damages.

(3) The court shall determine what portion of the loss or damage was caused by the fault or negligence of the employer, director, executive officer or other worker and shall do so whether or not he, she or it is a party to the action.

(4) No damages, contribution or indemnity for the amount determined under subsection (3) to be caused by a person described in that subsection is recoverable in an action.

[22] In *Decision No. 1460/02*, the Panel noted that the Tribunal is not required to apply Board policy in right to sue applications, as section 126 of the Act refers to appeals, not applications. The Panel, however, also noted that it is important to maintain consistency with findings that might have been made had the case come to the Tribunal by way of appeal from a decision regarding entitlement. Therefore, I agree that Board policy continues to be relevant in right to sue applications. See *Decision No. 755/02*.

[23] In determining this application I have considered the following Board documents from the WSIB's *Operational Policy Manual* ("OPM"):

- OPM Document No. 15-02-02, "Accident in the course of employment"
- OPM Document No. 15-03-05, "Travelling"

[24] I also consider the well-established position, including from the Tribunal's case-law, that the onus to remove the right to sue rests with the applicants in these cases. The applicants are obliged to establish, on the balance of probabilities, that the right to sue should be removed.

[25] Tribunal *Decision No. 953/11*, along with various other cases, discusses what is often referred to as the “Historic Bargain”, which provides workers with WSIB benefits in exchange for having given up the right to sue. That Historic Bargain, which is similar across the country, has existed for many, many years. Yet the common-law right to sue has existed for a far longer time. Indeed, the common-law right to sue has been in existence ever since the Magna Carta.

[26] It must be kept in mind that it is not a “privilege” to sue. Rather, it is a “right”. Indeed it is an ancient right. The prohibition against suit brought by workers as provided for in the WSIA is accordingly an exception to the long-existing common-law right to sue. This statutory exception must therefore be construed narrowly, and in accordance with the well-established legal principles, as these apply to the facts of a particular case.

(vi) My approach to these reasons

[27] In these reasons, I will not review in detail all of the testimony of the witness, or all of the submissions. I will also not review all the decisions to which counsel have referred me, although I assure them that I have read the decisions and have carefully considered their well-made submissions. Yet to re-state everything would in my view unduly elongate these reasons, without any real benefit to the parties. Thus, instead I will follow the approach described in Tribunal *Decision No. 437/00R*, as follows:

[25] Yet, the standard for determining whether a decision is reasonable does not require that each and every piece of evidence be minutely sifted and commented on with conclusions then being stated for each item of evidence presented for the adjudicator. If that were the standard, even straightforward cases would require pages upon pages of decision writing. Complex cases such as this one would consume whole forests in an effort to provide such detailed written reasons.

[26] Rather, the requirement for good reasons is that a decision:

- decide only what needs to be decided,
- discusses what must be discussed,
- considers the evidence so that it is obvious that the decision-maker arrived at a transparent, fair and reasoned conclusion.

[27] Reasons must provide an analysis of the evidence so that the parties, and any superior reviewing body, can understand why and how the decision was made, and that it is clear that the decision was made upon consideration of relevant evidence, with an open mind, and not upon extraneous or irrelevant considerations.

[28] In discussing the evidence, in my view it is not necessary to refer to all of the evidence in a decision. Rather, the evidentiary basis for the decision must be clear. Reasons must also address the relevant law being applied, and how that law applies to the facts before the decision-maker, to demonstrate how the decision-maker came to a reasoned conclusion.

(vii) Analysis and conclusions

[28] In this case, I am struck by the fact that Mr. Perrin was, on the day in question, which he described as a poor weather day, not planning to go anywhere but back to his truck from the convenience store. He had a sleeper bunk, typical for a long-haul truck-cab. He was taking his snacks and sundry purchases from the convenience store with him back to the truck-cab, intending to relax and watch TV using the available wi-fi. He was not then planning to drive

anywhere or go anywhere, although he stated he might have gone out for dinner later, in that case driving the truck as indeed he was permitted to do for short distances.

[29] He was not, however, on this occasion being picked up by his brother, leaving the truck behind, and going away for an evening until resuming his driving duties the next day. Rather, when the accident occurred, Mr. Perrin again was in the course of returning to his truck, which was parked in an area of the truck stop, so he could relax there, and consume his snacks.

[30] As I consider this matter, it is helpful to refer to OPM Document No. 15-02-02, which policy has been considered in many Tribunal decisions, some of which decisions counsel referenced in their submissions. Describing “activity”, that policy reads as follows:

Policy

A personal injury by accident occurs in the course of employment if the surrounding circumstances relating to place, time, and activity indicate that the accident was work-related.

Guidelines

In determining whether a personal injury by accident occurred in the course of employment, the decision-maker applies the criteria of place, time, and activity in the following way:

Place

If a worker has a fixed workplace, a personal injury by accident occurring on the premises of the workplace generally will have occurred in the course of employment. A personal injury by accident occurring off those premises generally will not have occurred in the course of employment.

If a worker with a fixed workplace was injured while absent from the workplace on behalf of the employer or if a worker is normally expected to work away from a fixed workplace, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities.

Time

If a worker has fixed working hours, a personal injury by accident generally will have occurred in the course of employment if it occurred during those hours or during a reasonable period before starting or after finishing work.

If a worker does not have fixed working hours or if the accident occurred outside the worker’s fixed working hours, the criteria of place and activity are applied to determine whether the personal injury by accident occurred in the course of employment.

Activity

If a personal injury by accident occurred while the worker was engaged in the performance of a work-related duty or in an activity reasonably incidental to (related to) the employment, the personal injury by accident generally will have occurred in the course of employment.

If a worker was engaged in an activity to satisfy a personal need, the worker may have been engaged in an activity that was incidental to the employment. Similarly, engaging in a brief interlude of personal activity does not always mean that the worker was not in the course of employment. In determining whether a personal activity occurred in the course of employment, the decision-maker should consider factors such as

- The duration of the activity
- The nature of the activity, and
- The extent to which it deviated from the worker's regular employment activities.

In determining whether an activity was incidental to the employment, the decision-maker should take into consideration

- The nature of the work
- The nature of the work environment, and
- The customs and practices of the particular workplace.

Application of criteria

The importance of the three criteria varies depending on the circumstances of each case. In most cases, the decision-maker focuses primarily on the activity of the worker at the time the personal injury by accident occurred to determine whether it occurred in the course of employment.

If a worker with fixed working hours and a fixed workplace suffered a personal injury by accident at the workplace during working hours, the personal injury by accident generally will have occurred in the course of employment unless, at the time of the accident, the worker was engaged in a personal activity that was not incidental to the worker's employment.

The decision-maker examines the activity of the worker at the time of the accident to determine whether the worker's activity was of such a personal nature that it should not be considered work-related.

In all other circumstances, the time and place of the accident are less important. In these cases, the decision-maker focuses on the activity of the worker and examines all the surrounding circumstances to decide if the worker was in the course of employment at the time that the personal injury by accident occurred. *[emphasis added]*

[31] I have also found helpful OPM Document No 15-03-05, commonly referred to as the "Travelling" policy. For convenience, and to situate my conclusions in context, I also excerpt from that policy:

Policy

As a general rule, a worker is considered to be in the course of the employment when the person reaches the employer's premises or place of work, such as a construction work site, and is not in the course of employment when the person leaves the premises or place of work.

Guidelines

Travel on employer's business

When the conditions of the employment require the worker to travel away from the employer's premises, the worker is considered to be in the course of the employment continuously, except when a distinct departure on a personal errand is shown. The mode of travel may be by public transportation or by employer or worker vehicle if the employment requires the use of such a vehicle. However, the employment must obligate the worker to be travelling at the place and time the accident occurred.

Proceeding to and from work

The worker is considered to be "in the course of employment" when the conditions of the employment require a worker to drive a vehicle to and from work for the purpose

of that employment, except when a distinct departure on a personal errand takes place enroute.

"In the course of employment" also extends to the worker while going to and from work in a conveyance under the control and supervision of the employer.

Overnight accommodation

Entitlement under the *Workplace Safety and Insurance Act* or the *Workers' Compensation Act* (the Act) extends to persons travelling in the course of employment to and from various places. Coverage also extends to accidents occurring in such places as hotels when the employer is paying the worker's expenses. The worker is covered should he suffer injury by accident at any time while in the hotel engaged in reasonable acts such as dining in the restaurant and using washroom facilities. If the worker chooses to dine in a restaurant other than in the hotel but within a reasonable distance of it, coverage is extended during this activity. There is no entitlement if the worker is injured while visiting a movie theatre or cocktail lounge or engaging in some other personal activity.

Responding to an emergency call

Workers travelling to answer an emergency call from the employer, requiring immediate action on the worker's part, are in the course of their employment.

Coverage starts from the time the telephone call is received, and while travelling by reasonable and direct route to the employer's premises or work site from the time and point of departure.

Coverage also applies on the return trip to the worker's own property or the point of departure [*emphasis added*].

[32] There was no suggestion that Ontario law and the policies of the Ontario WSIB do not apply to this case. I find that Ontario law and the Board policies do apply, as Mr. Perrin was clearly in Ontario at the relevant time. Moreover, it was (correctly) conceded that he does have a "substantial connection" to this jurisdiction. Accordingly, pursuant to OPM Document No. 15-03-05, his conditions of employment required that he be travelling overnight.

[33] Can it be said that the mere act of going to the convenience store to make a purchase, with the intention of immediately returning to his truck, was a "distinct departure on a personal errand"? Can it be said that this activity was not "reasonably incidental to" his employment?

[34] In the context of a long haul trucker, I find Tribunal *Decision No. 1765/08* persuasive. When discussing OPM Document No. 15-02-02 in the context of a long haul trucker, that decision reads as follows:

[58] Board OPM document No. 15-02-02, referred to above indicates that engaging in a brief interlude of personal activity does not mean that the worker was not in the course of employment. The policy directs the decision-maker to consider the duration of the activity, the nature of the activity, and the extent to which it deviated from the worker's regular employment activities. In determining whether an activity is incidental to employment, the policy directs the decision-maker to take into consideration the nature of the work, the nature of the work environment, and the customs and practices of the particular work place.

[59] In the case of a long distance truck driver, the personal and employment are particularly difficult to separate in my view. The worker is responsible for the truck at all times during the trip. The truck is his work and the journey itself is his work, but he is entitled to time off in the course of a long trip. In the case at hand, the worker may have

ventured into the personal when he went to visit his friend and attend a barbeque there, but he was entitled to personal time off during the week long trip in the employer's truck. He could not get to his friend's home without taking the truck, for which he was responsible, and without parking the truck. Parking the truck on the main route and finding his way to his friend's home separately would not have been reasonable, practical, nor desirable from the perspective of the safety of the truck. The evidence suggests that the worker only visited his friend because the friend lived relatively close to the route which the worker was taking while engaged in employment.

[60] The evidence suggests that departures from the main route for personal reasons were tolerated by the employer, at least if they were authorized or communicated. In my view of the evidence, the worker communicated his intention to go to Lanark to the employer. The worker intended to stay at his friend's overnight and to then continue on his journey to Edmonton. The accident occurred while the worker was engaged in an activity, i.e. parking, which was a regular and necessary part of his working duties, regardless of which route he was on. The employer paid the worker on the basis of the distance to Lanark, following the accident. In the context of a trip of 4000 kilometres, a departure from the main route, whether of 51 miles or 51 kilometres, is not very significant.

[61] The facts of this case are in my view much different to those in *Decision No. 954/89* where the Panel found that the truck driver in that case was not in the course of employment when he had an accident. In that case, there was considerable, reliable evidence that the worker had been drinking during much of a two day trip of 800 kilometres, including in the period before the accident. He had signed himself out of hospital following the accident, before blood samples could be taken. The Panel found this to be unusual conduct. In a previous trip on the same route, the worker had gone 400 kilometres off the most direct route. At the time of the return trip during which the accident had occurred, there was evidence that he was also engaged in a significant departure from the direct route and was not in fact on a road to Ontario, his return destination, at the time of the accident.

[62] The facts in this case are also different to those in *Decision No. 2165/04*. In that case, the workers had travelled to a convention, concluded their business there, had stopped for lunch and shopping, and were on their way home when the police stopped them as part of a mistaken identity, high-risk takedown, which the Vice-Chair found could have happened to anyone. The accident occurred during the takedown.

[63] In this case, the worker had intended to take a permissible break from his trip before resuming his journey and was engaged in an activity, i.e. parking, very much related to his employment when the accident occurred. The divergence from the main route was not significant in the context of a week long journey of 4,000 kilometres.

[64] In my view of the evidence, the worker was in the course of his employment when the accident of September 16, 2006, occurred. While the employer was concerned that the worker did not report the accident personally until the next day, the worker explained his delay, and according to the employer's statements, the police informed the employer of the accident at the time of the accident. The worker also explained any delay in seeking medical attention as set out in paragraph 52 above, and I have accepted his explanation [*emphasis added*].

[35] In my view, unlike in Tribunal *Decision No. 130/16*, wherein the plaintiff's activities at the time of the accident were found to be "essentially personal in nature", in this matter before me and on these facts as these exist, the activities I find were reasonably incidental to Mr. Perrin's employment. He had just fueled his truck, he was parked at a truck stop, he was returning to his truck, and was intending to stay in his truck, when the slip and fall accident occurred. All these activities, in my view, are "incidental to his employment". I do not find that

these activities constitute a “distinct departure on a personal errand”, using the language from both policy documents.

[36] This is especially the case given the nature of the occupation—the worker was a long-distance trucker who worked in, relaxed in, and also slept in his truck. As noted in *Decision No. 1765/08*, the truck was both his home and his “office”, or his work-place, albeit a mobile one.

[37] If Mr. Perrin had been picked up by his brother, as he stated sometimes transpired, after leaving his truck in a secure location and, while on the way to his brother’s home a MVA unfortunately occurred, that would be an entirely different set of facts. In those circumstances, in my view, there would be a strong argument that Mr. Perrin was no longer in the course of his employment when that accident occurred. That would be, in my view, an example of an “essentially personal” activity unrelated to his employment. In other words, leaving his truck, and going away for the evening, arguably would be a “distinct departure on a personal errand”, using the wording from OPM Document No. 15-03-05.

[38] Yet, those are not the facts before me. In this case, Mr. Perrin did not go off on a “distinct departure”. He did not leave the truck stop, and he was not going out to socialize with family and friends on this occasion, perhaps in part due to the inclement weather. Again, when the accident occurred Mr. Perrin was instead then returning to and intending to stay with his truck.

[39] As discussed in Tribunal *Decision No. 1765/08*, “the truck is his work and the journey itself is his work”. Mr. Perrin was responsible for the security of the truck, given his testimony that if he was to leave it he would ensure that it was parked in a secure location. Again, that action was not taken on the day in question because Mr. Perrin did not intend, at the relevant time, to leave his truck. Even if he was going out later, pursuant to his testimony he likely would have driven a short distance in the truck, in order to get dinner. Yet again, that limited activity, which would include using the truck for a brief interlude of personal activity to satisfy a personal need, also arguably would have been incidental to his employment. See, in that regard, Tribunal *Decision Nos. 398/14 and 1999/18* and the various cases referenced therein.

[40] That later decision indeed makes clear that a break is typically not a “distinct departure”. In this case, I agree that the break occurred at the end of the working day. Yet, considering again that Mr. Perrin was away from home and travelling, and his truck was when on the road both his home and his “office”, in my view all this nevertheless leads to my conclusion that Mr. Perrin was at the time engaged in an activity reasonably incidental to his employment.

[41] Of course, Tribunal *Decision No. 1765/08*, to which I have referred earlier, was not a Right to Sue application. Rather, it involved a benefits appeal. Yet, as discussed near the outset of these reasons, in order to maintain consistency, it is important that factually similar cases be decided in a similar fashion. To have similar facts lead to different results because one case originates as a benefit appeal while another one originates as a Right to Sue application would lead to uncertainty and inconsistency in the law. That would not be a desirable outcome. In this case, I find the principles from *Decision No. 1765/08* well apply to this present application.

[42] That same observation is made for Board policy. While it is not obligatory to apply it in an Application, as discussed above, for the sake of consistency policy should be applied unless to do so would lead to an absurd or otherwise inappropriate result. That is not the case here.

[43] Accordingly, in applying the Act and Board policy to the evidence, and in coming to my conclusions on this matter, I find ultimately that Mr. Perrin was involved in an activity

reasonably incidental to his employment when he unfortunately sustained his slip and fall accident. He had not at the time made a distinct departure on a personal errand, such as to remove himself from the course of employment.

- [44] He is thus correctly entitled to Worker's Compensation benefits, with particular questions pertaining to the level, duration, and ongoing entitlement of his benefits remitted to and to be decided by WorkSafe NB, pursuant to any rights of appeal which Mr. Perrin or his employer may have in that regard. Yet, Mr. Perrin has no right to sue. The action of Ms. Yerxa, derivative to the action of Mr. Perrin, also must fail.

DISPOSITION

[45] The application is granted. The right of action by the plaintiffs Mr. Perrin and Ms. Yerxa as against the named defendants in the action described earlier in these reasons is taken away by the Act.

DATED: October 10, 2018

SIGNED: J. Josefo